IN THE NATIONAL COMPANY LAW TRIBUNAL,
SINGLE BENCH, CHENNAI

CA/447&448/CAA/2019

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of Scheme of Arrangement

Between

M/s. IND Eco Ventures Limited
(Demerged Company)

And

M/s. Soura Investments Holdings Private Limited
(Resulting Company)

And

Their Respective Shareholders and Creditors

Order delivered on 26.04.2019

CORAM:

CH. MOHD SHARIEF TARIQ, MEMBER (JUDICIAL)

For Applicant(s): Mr. R Kannan, PCS

ORDER

Per: CH. MOHD SHARIEF TARIQ, MEMBER (JUDICIAL)

1. Under consideration are Application Nos. 447&448/CAA/2019 filed under Sections 230 to 232 of the Companies Act, 2013. The prayer made is for seeking order to convene, hold and conduct the meeting of Equity

Shareholders in relation to Demerged Company and Resulting Company, and to convene, hold and conduct the meeting of Secured/Unsecured Creditors in relation to the Demerged Company.

2. **M/s. IND Eco Ventures Limited:-**

(i) The Demerged Company viz., M/s. IND Eco Ventures Limited has 8 (Eight) Equity Shareholders. The Applicant prayed to fix the time and place for calling, holding and conducting the General Meeting of the Equity shareholders of the Demerged Company and to appoint a Chairman for the said meeting. Therefore, the General Meeting of the Equity Shareholders is directed to be conducted on 29th May, 2019 at 11:00 A.M. at registered office i.e. Kothari Building, 4th Floor, 114, M.G. Road, Nungambakkam, Chennai - 600034.

Shri Bala K V (Director), alternatively, Shri K K Dinakar, Authorised Person, is hereby appointed as

the Chairman of the Meeting of the Equity Shareholders. The Scrutinizer for the EGM will be Ms. N. Aishwarya (Practicing Company Secretary). The quorum for meeting is fixed at 3. In case the quorum is not there at the designated time when the meeting is called, then, the meeting shall be adjourned by half an hour, and thereafter, the person(s) present for voting shall be deemed to constitute the quorum. The notice of the meeting of equity shareholders shall be issued at least not less than 30+2 days prior to the date fixed for meeting. The service of notice shall be effected by speed post/through electronic means, provided the e-mail address of the equity shareholders is available with the Demerged Company.

The Demerged Company is also directed to make available the facility for voting by making appropriate arrangements. The information about such arrangements shall be given to the equity shareholders well before the date fixed for the meeting. Those who

will receive the notice may vote in the meeting either in person or through proxy for the adoption of the Scheme. The Chairman shall ensure that the proceedings of the meeting may take place in a just, free and fair manner, and within one week of the meeting, the Chairman shall file the report of the meeting of equity shareholders before this Bench. The Chairman of the meeting is at liberty to fix his remuneration as per the practice in vogue and the company shall pay the same to him.

(ii) There are no Secured Creditors in relation to the Demerged Company. The Certificate issued by the Chartered Accountants to this effect is placed at page 162 of the typed set filed with the Application.

(iii) There are 5 Unsecured Creditors and 2 Other Creditors in the Demerged Company. The Certificate issued by the Chartered Accountants to this effect is placed at page nos. 162 and 163 of the typed set filed with the Application. The Applicant Company prayed

to fix the time and place for calling, holding and conducting the meeting of the Creditors of the Demerged Company and to appoint a Chairman for the said meeting. Therefore, the meeting of the Creditors is directed to be conducted on 29th May, 2019 at 01:00 P.M. at registered office i.e. Kothari Building, 4th Floor, 114, M.G. Road, Nungambakkam, Chennai - 600034.

Shri Bala K V (Director), alternatively, Shri K K Dinakar, Authorised Person, is hereby appointed as the Chairman of the Meeting of the Creditors. The Scrutinizer for the EGM will be Ms. N. Aishwarya (Practicing Company Secretary). The quorum for meeting is fixed at 2. In case the quorum is not there at the designated time when the meeting is called, then, the meeting shall be adjourned by half an hour, and thereafter, the person(s) present for voting shall be deemed to constitute the quorum. The notice of the meeting of Creditors shall be issued at least not

less than 30+2 days prior to the date fixed for meeting. The service of notice shall be effected by speed post/through electronic means, provided the e-mail address of the Creditors is available with the Demerged Company.

The Demerged Company is also directed to make available the facility for voting by making appropriate arrangements. The information about such arrangements shall be given to the Creditors well before the date fixed for the meeting. Those who will receive the notice may vote in the meeting either in person or through proxy for the adoption of the Scheme. The Chairman shall ensure that the proceedings of the meeting may take place in a just, free and fair manner, and within one week of the meeting, the Chairman shall file the report of the meeting of Creditors before this Bench. The Chairman of the meeting is at liberty to fix his remuneration as

per the practice in vogue and the company shall pay the same to him.

3. **M/s. Soura Investments Holdings Private Limited:-**

(i) The Resulting Company viz., M/s. Soura Investments Holdings Private Limited has 3 (Three) Equity Shareholders. The Applicant prayed to fix the time and place for calling, holding and conducting the General Meeting of the Equity shareholders of the Resulting Company and to appoint a Chairman for the said meeting. Therefore, the General Meeting of the Equity Shareholders is directed to be conducted on 29th May, 2019 at 03:00 P.M. at registered office i.e. Kothari Building, 4th Floor, 114, M.G. Road, Nungambakkam, Chennai - 600034.

Shri Bala K V (Director), alternatively, Shri K K Dinakar, Authorised Person, is hereby appointed as the Chairman of the Meeting of the Equity Shareholders. The Scrutinizer for the EGM will be Ms. N. Aishwarya (Practicing Company Secretary). The

quorum for meeting is fixed at 2. In case the quorum is not there at the designated time when the meeting is called, then, the meeting shall be adjourned by half an hour, and thereafter, the persons present for voting shall be deemed to constitute the quorum. The notice of the meeting of equity shareholders shall be issued at least not less than 30+2 days prior to the date fixed for meeting. The service of notice shall be effected by speed post/through electronic means, provided the e-mail address of the equity shareholders is available with the Resulting Company.

The Resulting Company is also directed to make available the facility for voting by making appropriate arrangements. The information about such arrangements shall be given to the equity shareholders well before the date fixed for the meeting. Those who will receive the notice may vote in the meeting either in person or through proxy for the adoption of the Scheme. The Chairman shall ensure that the

proceedings of the meeting may take place in a just, free and fair manner, and within one week of the meeting, the Chairman shall file the report of the meeting of equity shareholders before this Bench. The Chairman of the meeting is at liberty to fix his remuneration as per the practice in vogue and the company shall pay the same to him.

(ii) There is no secured and unsecured creditor in relation to the Resulting Company. The certificate issued by the Charted Accountant to this effect is placed at page 158 of the typed set filed with the Application.

4. The Registry is directed to issue notice to the Reserve Bank of India (RBI), concerned Regional Director, Ministry of Corporate Affairs, RoC concerned and Income Tax Authorities including the Assessing Officer of the I.T. Circle in relation to the Demerged Company and Resulting Company separately. Since the Demerged Company is unlisted Public Limited Company and the Resulting Company is Private Limited Company, there is no need to

issue notices to SEBI and to the Stock Exchanges. In case, the statutory authorities to whom the notice is issued are desirous of making any objection/representation, they may do so within 30 days from the date of receipt of the notice. In case no objection/representation is made, it shall be presumed that they/any of them have/has no objection/representation to make.

5. The Applicant Companies are directed to issue private notice to the said authorities/regulators by way of speed post/hand delivery separately. The proof of sending and effecting the service of notice upon them along with the newspaper publication shall be submitted with the supporting affidavit to this Bench along with Company Petition(s).

6. The Applicant Companies are directed to effect publication separately in the newspapers one in English "News Today" (Tamilnadu Edition) and another in vernacular "Malai Sudar" (Tamilnadu Edition) provided the said newspapers have wide circulation in the State of Tamilnadu, having not less than 30+2 days before the date(s) fixed for the meetings.

The Applicant Companies are directed to upload the notice on their websites and display the notice on the notice board at the Registered Office of their respective Companies. The Registry is also directed to display the notice on the notice board of this Bench.

7. Accordingly, the Application is allowed. The Applicant Companies are directed to present the Petition(s) after one week from the date on which the reports are filed by the Chairman.

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[CH. MOHD. SHARIEF TARIQ]
MEMBER (JUDICIAL)

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